

JUDGMENT SHEET
IN THE HIGH COURT OF BALOCHISTAN QUETTA
Constitution Petition No.1045 of 2025
(CC#100107802362)

Ghulam Raza

Vs.

The Government of Balochistan through Additional Chief Secretary (Development),
Planning & Development Department, Balochistan, Quetta & others

J U D G M E N T

Date of hearing 23.09.2025 Announced on 30.09.2025

Petitioner by: M/s. Muhammad Ishaq Nasar & Muhammad
Akbar Shah, Advocates.

Respondent Nos.1 & 2 by: M/s. Adnan Basharat, Advocate General,
Balochistan assisted by Arbab Nasruminallah,
Addl; AG, Siddiq Ahmed, Chief of Section,
P&DD & Muhammad Akhtar, Deputy Secretary
P & D Department, Balochistan.

Respondent Nos.3 by: Mr. Sultan Khalid, Advocate.

Shaukat Ali Rakhshani, J. The instant constitutional petition filed by the petitioner under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 ("Constitution"), carries the following relief;

"A. Declare that Respondent No.3 is no longer the Project Director for the Development Initiative for Kharan Town Department after 8th December, 2024 under clause 5(xiv) of the Policy for Appointment of Project Directors (PDs) and establishment of Project Management Unit (PMU) and further declare that the impugned extension notification dated 9th December 2024 is illegal being ultra-vires to the Policy 2023 and the judgments passed by this Hon'ble Court in CP No (K) 55/2024 and CP No. 1996/2024.

B. Declare that all tenders initiated, procured and contracts entered into with the contractors after lapse of four months i.e., 8th of December, 2024 may kindly be declared as void, as are done without any legal authority and justification.

C. Any other relief deemed fit & proper by this Hon'ble Court may also be awarded to the petitioner; in the interest of equity, fair play and justice".

2. Facts relevant for disposal of the case in hand are that the Government of Balochistan ("GoB") in order to upgrade the living standard of the inhabitants of Kharan City sanctioned Rs.8.39 billion

for construction & up gradation of roads invited tenders. According to the petitioner, respondent No.1 vide notification dated 09.08.2024, appointed respondent No.3 an Electrical Engineer Sub-Divisional Officer (BPS-17) as Project Director (“PD”) for the project titled as ‘*Implementation of Kharan Town Master Plan Phase-I*’ for a period of four months (120 days), whereafter respondent No.1 vide impugned notification dated 09.12.2024 extended his services till appointment of regular PD through competitive process till further orders, contrary to the Policy for appointment of Project Directors (PDs) and Establishment of Project Management Unit (PMU) (“Policy of 2023”).

3. In response to the notices issued by this Court, respondent Nos.1 to 3 filed their parawise comments separately, repudiating the claim of the petitioner on factual and as well as legal premises.

4. Learned counsel for the petitioner *inter alia* contended that initially respondent No.3 was appointed as PD for a period of 120 days as a stop-gap arrangement by respondent No.1, but the same is contrary to the Policy of 2023 as respondent No.3 holds a degree in Electronics, which is irrelevant to requirements of the said project, Maintained further that tenure of respondent No.3 was extended vide impugned notification by violating sub-clause (xiv) of clause 5 of Policy of 2023, which is grave violence of Government’s policy, undermining transparency and discouraging the competition in the process of appointment of PDs.

On the other hand, learned Advocate General vehemently opposed the contentions so put-forth by the learned counsel for the petitioner by questioning the locus standi of the petitioner and urged that respondent No.3 was appointed as PD in accordance with law and Policy of 2023; that the tenure of respondent No.3 was extended as the Planning & Development Department, GoB was stuck in

preparation of PSDP 2025-26 due to which the post of PD could not be left vacant, thus, the services of respondent No.3 were extended to avoid disruption in the project implementation. He urged that publication has been made in the leading newspapers for appointment of regular PD, which would be completed within due course of time, henceforth, requested for dismissal of the petition.

Mr. Sultan Khalid, learned counsel for respondent No.3 adopted the arguments of learned Advocate General and submitted that appointment of respondent No.3 was not based on favoritism, but rather on competency and that the services of respondent No.3 were extended in accordance with law and with prior approval of competently authority, based on the satisfactory performance of respondent No.3, thus no illegality or irregularity has occurred, henceforth, prayed for dismissal of the petition.

5. Heard. Record vetted.

6. Before divulging into the merits of the case, the objection raised by the respondents that the petitioner being a Town Counselor has no locus standi to invoke the constitutional jurisdiction of this Court under Article 199 of the Constitution by questioning the appointment of PD is appropriate to be addressed. This Court, in the case of “Muhammad Qahir Shah v. Federation of Pakistan, Ministry of Railways” (2014 YLR 2571) held that any citizen, who brings forward a public matter disclosing the violation of any constitutional or legal provision or unreasonable behavior of public functionary that is adverse to the public interest or has caused public loss may be categorized as ‘aggrieved person’, henceforth, when the attention of this Court has been drawn to a matter of public interest, highlighting serious transgression, this court would not close its eyes and be just a spectator. Above all, by now it is a trite law that, while invoking the

constitutional jurisdiction under Article 199 of the Constitution, an aggrieved person can bring forward a constitutional petition against appointment of public office holder and even not being aggrieved, he may seek a writ against such public office holder, thus objection with regard to the maintainability of instant petition is unsustainable.

7. Record reflects that appointments of PDs are governed under the Policy of 2023, issued by Additional Chief Secretary (Development), GoB, which was updated and modified from time to time and most recently revised through a Notification dated 19.10.2023, wherein complete mode & procedure for appointment of PDs, their eligibility criteria, termination, educational requirements, experience and skills have been laid down. Moreso, clause 5 of the Policy of 2023 outlines the policy for appointment of PDs, which for ease of reference is reproduced herein below;

- “5. Procedure for Appointment of PD and Project Staff:**

 - i. -----
 - ii. -----
 - iii. -----
 - iv. -----
 - v. -----
 - vi. -----
 - vii. -----
 - viii. -----
 - ix. -----
 - x. -----
 - xi. -----
 - xii. -----
 - xiii. -----
 - xiv. *In case the post of PD gets vacant due to any reason, the Chief Minister may appoint PD for a period not exceeding 120 days during which the concerned department shall complete the selection process through competitive manner. Other than interim arrangement, the Govt: Officers cannot be posted on transfer/posting/additional/adhoc charge basis.”*

[Emphasis supplied]

8. Bare perusal of sub-clause (xiv) of clause 5 manifests that albeit the worthy Chief Minister may appoint a PD, when the post

gets vacant due to any reason, but the same is limited to 120 days and during said period, the concerned department shall complete the selection process through competitive manner as prescribed.

9. In the instant case, respondent No.3 was appointed as PD vide notification dated 09.08.2024 initially for a period of four months as stop-gap arrangement, thus his tenure ceased on 09.12.2024, however, respondent No.1 vide impugned notification dated 09.12.2024 extended his services till appointment of the regular PD, which is clear violation of sub-clause (xiv) of clause 5 of the Policy of 2023, which expressly stipulates that the duration shall not exceed 120 days and during said period, respondent Nos.1 & 2 were bound to complete the process of appointment of regular PD, whilst complying with the conditions laid down in the Policy of 2023, thus merely on the pretext of stop-gap arrangement, services of respondent No.3 were extended illegally and without any lawful justification as well as contra to the Policy of 2023.

10. That apart, perusal of tenders bearing TSE Nos.242505714973, 242505715153, 242505715093, 242505715043, 242505727573 & 242505727593 reveals that bids have been solicited via Balochistan Public Procurement Regulatory Authority from the bidders for construction of various roads under the '*Development Initiative for Kharan Town*' by the PD i.e, Shahab Magsi (respondent No.3), but, we are stunned and absolutely astonished that how come an Electronics Engineer could supervise the work of Civil Engineering, which is completely irreconcilable to the field of respondent No.3, whilst violating clause 4 & 5 of the Policy of 2023, thus the quality and class of work performed under his supervision would be nothing, but a product devoid of craftsmanship and value.

11. Imperative to note that although respondent No.1 & 2 in their parawise comments have given the details & objectives of '*Master Plan for Development Initiative of Kharan Town*', which is included in the PSDP 2025-2026 with the justification that they were busy in the preparation of PSDP 2025-26, thus the post of Project Director could not be left vacant, therefore, extended the services of respondent No.3 and that the for appointment of regular PD publication dated 31.07.2025 has been made in the leading Urdu & English news papers, which justification if believed, cannot ease their burden for appointing an Electronics Engineer for doing the Civil Engineering work and that too by extending his tenure by violating the Policy of 2023.

12. Be that as it may, the impugned notification dated 09.12.2024, whereby extension was awarded to respondent No.3 did not contain a specific period as stipulated in sub-clause (xiv) of clause 5 of the Policy of 2023, which is 120 days, rather it was issued till further orders, which, if assumed for 120 days has lapsed on 09.04.2025 and till date no permanent appointment of PD has been made. Moreso, the Policy of 2023, envisages strict mechanism for appointment of PDs, thus when the law provides a particular manner of doing things, they must be done in that manner or not at all and anything done contrarily, would be illegal & ex-facie erroneous. SEE;["Mall Development (PVT) LTD vs. Waleed Khanzada" (2022 SCMR 2080)].

13. Learned Advocate General along with Mr. Siddiq Ahmed, Chief of Section, Planning and Development Department, GoB made a categorical statement that for appointment of regular PD publication has been made and the process would be completed within

stipulated period, without any delay, which is appreciated after realization of wrong committed by them.

14. Corollary, the petition is allowed in the following terms;

- i. The impugned Notification bearing No. P&D-RO/PP&II/(88)/2024-25/8520 dated 09.12.2024 is hereby declared void ab-initio, having no legal effect with the direction to respondent Nos.1 & 2 to complete the process of appointment of regular Project Director for the subject project in accordance with law and as per Policy of 2023 at the earliest, but not later than one (1) month.
- ii. Additional Chief Secretary (Development), Planning and Development Department, GoB (respondent No.1) is directed to cancel the tenders and work orders issued by respondent No.3 as PD during his extended period w.e.f 09.12.2024 till date, if not commenced and be re-advertised in accordance with law, after appointment of regular PD.
- iii. Respondent No.1 is further directed to look into the tenders during the extended period of respondent No.3 w.e.f 09.12.2024 and, if irregularities or malefactions are observed, he may take action accordingly.

The directions set forth shall be strictly complied with, in letter and spirit by respondent Nos.1 & 2 and compliance report in this behalf be submitted to the Registrar of this Court for our perusal in chambers.

No order as to cost.

Announced in open court:
This 30th day of September, 2025

Judge

Judge